

Senate File 398

H-1226

1 Amend Senate File 398, as passed by the Senate, as follows:

2 1. Page 1, by striking lines 1 through 11.

3 2. Page 1, after line 19 by inserting:

4 Sec. _____. <Section 537.2501, Code 2025, is amended by adding
5 the following new subsection:

6 NEW SUBSECTION. 4. For a consumer loan secured by an
7 interest in land, if a creditor that is a mortgage banker
8 licensed under section 535B.5 or registered under section
9 535B.3 originates such consumer loan in which the annual
10 percentage rate, points, and fees the consumer is charged
11 by all lenders in connection with the consumer loan do not
12 exceed the amounts specified in 12 C.F.R. §1026.43(e)(2)(vi)
13 and 12 C.F.R. §1026.43(e)(3), the consumer loan shall not be
14 subject to the limitations on fees specified in section 535.8,
15 subsection 4, paragraph "a", or section 535.8, subsection 5.>

16 3. By renumbering as necessary.

NORDMAN of Dallas